

File No.: EXP202305674

RESOLUTION OF SANCTIONING PROCEDURE

From the procedure initiated by the Spanish Agency for Data Protection and based on the following

BACKGROUND

FIRST: Mr. A.A.A. (*hereinafter, the complainant) filed a complaint with the Spanish Agency for Data Protection on April 14, 2023. The complaint is directed against (...) GESTIÓN INTEGRAL DE COMUNIDADES, S.L. with NIF B85802064 (hereinafter, the respondent). The grounds for the complaint are as follows:

The complainant states that on the facade of a premises owned by the respondent, a surveillance camera is installed that could capture public space, without having the necessary administrative authorization for it, and is not marked with the required informative signs indicating a monitored area. He provides images showing the location of the camera and the facade of the establishment where the camera is located (Annex I).

SECOND: In accordance with Article 65.4 of Organic Law 3/2018, of December 5, on Personal Data Protection and Guarantee of Digital Rights (hereinafter LOPDGDD), the complaint was duly forwarded to the respondent in a timely manner, so that they could analyze it and inform this Agency within one month of the actions taken to comply with the requirements set forth in data protection regulations. The forwarding, which was carried out in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), was not acknowledged by the respondent as recorded in the administrative file.

Although the notification was validly carried out by electronic means, considering the procedure completed in accordance with the provisions of Article 41.5 of the LPACAP, an informational copy was sent by postal mail, which was duly notified on May 23, 2023. In this notification, the obligation to communicate electronically with the Administration was reminded, and information was provided on the means of access to such notifications, reiterating that, henceforth, notifications would be made exclusively by electronic means.

Upon consulting the database of this Agency, no response has been received, nor has any measure been taken in any direction.

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THIRD: On July 14, 2023, in accordance with Article 65 of the LOPDGDD, the complaint submitted by the complainant was admitted for processing.

FOURTH: On December 15, 2023, the Director of the Spanish Agency for Data Protection decided to initiate sanctioning proceedings against the respondent, in accordance with the provisions of Articles 63 and 64 of Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP), for the alleged infringement of Article 13 of the GDPR, classified under Article 83.5 of the GDPR.

Upon consulting the database of this agency, it is recorded as as certified by the Official Postal Service on January 3, 2024.

FIFTH: The aforementioned initiation agreement was notified in accordance with the rules established in Law 39/2015, of October 1, on the Common Administrative Procedure of Public Administrations (hereinafter, LPACAP). On January 4, 2024, this agency received a written statement from the respondent expressing, through a responsible declaration, that the “system is not operational,” and that the installation was for security reasons against vandalism attacks on their establishment.

They provided documentation (Annex Written) including a model of the responsible declaration and an attached WhatsApp photo of the installation's condition.

SIXTH: On March 11, 2023, a was issued proposing the filing of the procedure as it was not verified that the installed camera was operational, serving merely a deterrent function against vandalism in their establishment.

Upon consulting the database of this Agency, it is recorded as “expired” due to lapse as the content was not accessed.

From the actions taken in this procedure and the documentation in the file, the following has been established:

PROVEN FACTS

First. The facts arise from the complaint dated April 14, 2023, which states the following:

“that on the facade of a premises owned by the respondent, a camera has been installed that could capture public space (...) without being marked with the required informative signs indicating a monitored area” (page No. 1).

Second. The presence of the camera is confirmed, although the respondent states through a responsible declaration that “it is not operational.”

Third. It is confirmed that the installed camera is for security reasons, being exclusively oriented towards the facade of the establishment.

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3/6

Fourth. It has not been verified that the system obtains images (data) from third parties or that it invades public space.

LEGAL GROUNDS

I

In accordance with the powers granted to each supervisory authority by Article 58.2 of Regulation (EU) 2016/679 (General Data Protection Regulation, hereinafter GDPR), and as established in Articles 47, 48.1, 64.2, and 68.1 of Organic Law 3/2018, of December 5, on the Protection of Personal Data and the guarantee of digital rights (hereinafter, LOPDGDD), the Director of the Spanish Agency for Data Protection is competent to initiate and resolve this procedure.

Furthermore, Article 63.2 of the LOPDGDD states: “The procedures processed by the Spanish Agency for Data Protection shall be governed by the provisions of Regulation (EU) 2016/679, this organic law, the regulatory provisions issued for its development, and, in so far as they do not contradict them, subsidiarily by the general rules on administrative procedures.”

Following the amendments made to the current LOPDGDD (LO 3/2018, December 5) by Law 11/2023, of May 8, on the transposition of European Union directives regarding the accessibility of certain products and services, migration of highly qualified persons, taxation, and digitalization of notarial and registry actions; and by which Law 12/2011, of May 27, on civil liability for nuclear damage or damage caused by radioactive materials is amended, the procedural deadline established in Article 64.2 “in fine” is applied to this procedure.

The procedure shall have a maximum duration of twelve months from the date of the initiation agreement. Upon the expiration of this period, it will lapse, and consequently, the proceedings will be archived.

II

In this case, the complaint dated 04/14/23 is examined, through which the following is conveyed:

“a video surveillance camera has been installed that is not marked and points to the public road...”—page no. 1—.

However, initially, there is no informational sign on the facade indicating that it is a video-monitored area, which could be infringing the content of Article 13 GDPR.

Article 22, section 4 of the LOPDGDD provides: “The information duty provided for in Article 12 of Regulation (EU) 2016/679 shall be deemed fulfilled by placing an informational device in a sufficiently visible location identifying, at least, the existence of the processing, the identity of the controller, and the possibility of exercising the rights provided for in Articles 15 to 22 of Regulation (EU) 2016/679. A

connection code or internet address to this information may also be included in the informational device.”

The aforementioned facts could imply an infringement of the content of Article 13 GDPR, due to the lack of informational sign(s) with an effective address to which one could direct inquiries or indicate, if applicable, the main responsible party for the processing of the data.

Article 13 GDPR “Information to be provided when personal data are obtained from the data subject”

1. When personal data relating to a data subject are obtained from that data subject, the controller shall provide all the information indicated below at the time of obtaining the data: a) the identity and contact details of the controller and, where applicable, of the controller's representative; b) the contact details of the data protection officer, where applicable; c) the purposes of the processing for which the personal data are intended and the legal basis for the processing (...).

Article 72, section 1 of the LOPDGDD (LO 3/2018, December 5) regarding the statute of limitations for very serious infringements states that “they shall prescribe after three years” and particularly the following:

h) The omission of the duty to inform the affected party about the processing of their personal data in accordance with the provisions of Articles 13 and 14 of Regulation (EU) 2016/679 and Article 12 of this organic law.

III

On 01/04/24, a written statement of allegations from the respondent was received regarding the facts presented, stating that the camera serves a deterrent function without being operational.

This agency, based on the allegations presented, considers that it is a non-operational device, not processing data associated with an identified or identifiable natural person, which serves a deterrent function against vandalism.

The presence of “dummy” cameras on the facades of establishments is not foreign to this agency, being installed by the owners or tenants with the aim of preventing, in most cases, annoying graffiti or attempts of theft with force.

There are numerous resolutions from this Agency where it positions itself against any type of vandalism (graffiti, fluids, breakages, etc.) against public and/or private property, considering that the installation of a camera is a

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5/6

an appropriate measure to prevent and avoid this type of conduct in most cases of a furtive nature.

It is noted that the presence of such devices may cause some "discomfort" to third parties who feel intimidated by them, believing they are being observed in their daily activities.

Given the "deterrent" nature of the system, the presence of an informational sign is not mandatory, as it does not involve any data and does not initially affect the rights of third parties with the system in question.

However, the absence of an informational sign may lead to new complaints or even reports to the State Security Forces and Corps regarding its presence, causing subsequent inconveniences to the person responsible for the installation, who will have to provide the appropriate explanations.

Therefore, it would be advisable to place an informational sign in a visible area indicating the responsible party and the effective address to exercise rights, having the necessary documentation to prove this in case it is required.

IV

In accordance with the above, it is considered that the installed system has a "simulated" nature, without any data processing being proven, beyond the function of protecting the establishment against vandalism.

In the event that you decide to make the system, the required conditions are clearly outlined in the current regulations, which can be consulted on the website of this Agency www.aepd.es.

Therefore, in accordance with the applicable legislation and having assessed the criteria for the

gradation of sanctions whose existence has been proven,

the Director of the Spanish Agency for Data Protection RESOLVES:

FIRST: TO ORDER the ARCHIVING of the present procedure as no infringement has been proven in the matter at hand.

SECOND: TO NOTIFY this resolution to (...) GESTIÓN INTEGRAL DE COMUNIDADES, S.L.

In accordance with the provisions of Article 50 of the LOPDGDD, this Resolution will be made public once it has been notified to the interested parties.

Against this resolution, which concludes the administrative process in accordance with Article 48.6 of the LOPDGDD, and in accordance with the provisions of Article 123 of the LPACAP, the interested parties may optionally file a motion for reconsideration before the Director of the Spanish Agency for Data Protection within one month from the day following the notification of this resolution or directly a contentious-administrative appeal before the Contentious-Administrative Chamber of the National Court, in accordance with the provisions of Article 25 and Section 5 of the fourth additional provision of Law 29/1998, of July 13, regulating the Contentious-Administrative Jurisdiction, within two months from the day following the notification of this act, as provided in Article 46.1 of the aforementioned Law. 938-16012024

Mar España Martí

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